

An Act

ENROLLED SENATE
BILL NO. 1775

By: Pederson of the Senate

and

Dempsey of the House

An Act relating to municipalities; amending 11 O.S. 2021, Section 14-111, which relates to the enforcement and penalties for violation of municipal ordinances; clarifying that penalties for certain municipal ordinances may be equal to penalties in state statute; declaring certain amount of certain fine void and unenforceable in certain circumstance; updating statutory references; updating statutory language; and declaring an emergency.

SUBJECT: Penalties for violations of municipal ordinances

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 11 O.S. 2021, Section 14-111, is amended to read as follows:

Section 14-111. A. The governing body of a municipality may provide for enforcement of its ordinances and establish fines, penalties, or imprisonment, as authorized by subsections B through D of this section, for any offense in violation of its ordinances, which shall be recoverable together with costs of suit. The governing body may provide that any person fined for violation of a municipal ordinance who is financially able but refuses or neglects to pay the fine or costs may be compelled to satisfy the amount owed by working on the streets, alleys, avenues, areas, and public grounds of the municipality, subject to the direction of the street commissioner or other proper officer, at a rate per day as the

governing body may prescribe by ordinance, but not less than Fifty Dollars (\$50.00) per day for useful labor, until the fine or costs are satisfied.

B. 1. Except for municipal ordinances ~~related to prostitution~~ and as otherwise provided in this ~~section~~ subsection, cities having a municipal criminal court of record may enact ordinances prescribing maximum fines of One Thousand Two Hundred Dollars (\$1,200.00) and costs or imprisonment not exceeding six (6) months or both ~~the~~ such fine and imprisonment, but shall not have authority to enact any ordinance making unlawful an act or omission declared by state statute to be punishable as a felony.

2. Cities having a municipal criminal court of record may enact ordinances prescribing maximum fines of One Thousand Dollars (\$1,000.00) and costs or imprisonment not exceeding six (6) months or both such fine and imprisonment for violations of municipal ordinances regulating the pretreatment of wastewater and regulating stormwater discharges.

3. Cities having a municipal criminal court of record may enact ordinances prescribing maximum fines of One Thousand Two Hundred Fifty Dollars (\$1,250.00) and costs or imprisonment not exceeding six (6) months or both such fine and imprisonment for alcohol-related or drug-related traffic offenses. The court shall remit Fifty Dollars (\$50.00) of each alcohol fine or deferral fee to a fund of the municipality that shall be used to defray costs for enforcement of laws relating to juvenile access to alcohol, other laws relating to alcohol and other intoxicating substances, and traffic-related offenses involving alcohol or other intoxicating substances. The sum of Fifteen Dollars (\$15.00) shall be assessed in every case for violations of municipal ordinances relating to the offense of driving under the influence of alcohol or other intoxicating substance and shall be remitted to the credit of the Oklahoma Impaired Driver Database Revolving Fund created pursuant to Section ~~8~~ 11-902d of ~~this act~~ Title 47 of the Oklahoma Statutes.

~~2- 4.~~ 4. For violations of municipal ordinances relating to prostitution, including, but not limited to, engaging in prostitution or soliciting or procuring prostitution, a municipal criminal court of record may enact ordinances prescribing an imprisonment not to exceed six (6) months, and fines as follows:

- a. a fine not to exceed Two Thousand Five Hundred Dollars (\$2,500.00) upon the first conviction for violation of any such ordinances,
- b. a fine ~~of not more than~~ to exceed Five Thousand Dollars (\$5,000.00) upon the second conviction for violation of any of such ordinances, and
- c. a fine ~~of not more than~~ to exceed Seven Thousand Five Hundred Dollars (\$7,500.00) upon the third or subsequent convictions for violation of any of such ordinances, or both such fine and imprisonment as well as a term of community service ~~of not less than~~ forty (40) nor more than eighty (80) hours.

C. 1. Municipalities having a municipal court not of record may enact ordinances prescribing maximum fines pursuant to the provisions of this subsection. A municipal ordinance may not impose a penalty, including fine or deferral fee in lieu of a fine and costs, ~~which~~ that is greater than that established by statute for the same offense.

2. The maximum fine or deferral fee in lieu of a fine for any traffic-related offenses relating to speeding or parking, provided that the penalty for such offense is not established by statute, shall not exceed Two Hundred Dollars (\$200.00). For any traffic-related offenses relating to speeding or parking with a penalty established by statute, including fine or deferral fee in lieu of a fine and costs, a municipal ordinance may impose a penalty that is less than or equal to the penalty established by statute for the same offense.

3. The maximum fine or deferral fee in lieu of a fine for alcohol-related or drug-related offenses, provided that the penalty for such offense is not established by statute, shall not exceed Eight Hundred Dollars (\$800.00). For all other offenses, the maximum fine or deferral fee in lieu of a fine shall not exceed Seven Hundred Fifty Dollars (\$750.00) any alcohol-related or drug-related offenses with a penalty established by statute, including fine or deferral fee in lieu of a fine and costs, a municipal ordinance may impose a penalty that is less than or equal to the

penalty established by statute for the same offense. The court shall remit Fifty Dollars (\$50.00) of each alcohol fine or deferral fee to a fund of the municipality that shall be used to defray costs for enforcement of laws relating to juvenile access to alcohol, other laws relating to alcohol and other intoxicating substances, and traffic-related offenses involving alcohol or other intoxicating substances.

4. For all other offenses, provided that the penalty for such offenses are not established by statute, the maximum fine or deferral fee in lieu of a fine shall not exceed Seven Hundred Fifty Dollars (\$750.00).

5. The ordinances may prescribe costs pursuant to the provisions of Section 27-126 of this title or imprisonment not exceeding sixty (60) days or both ~~the such fine and imprisonment; provided, that municipalities.~~ Municipalities having only a municipal court not of record shall not have authority to enact any ordinance making unlawful any act or omission declared by state statute to be punishable as a felony; ~~provided further, that municipalities.~~

6. Municipalities having a municipal court not of record may enact ordinances prescribing maximum fines of One Thousand Dollars (\$1,000.00) and costs or imprisonment not exceeding ninety (90) days or both such fine and imprisonment for violations of municipal ordinances regulating the pretreatment of wastewater and regulating stormwater discharges. If imprisonment is available for the offense, then that person charged shall have a right to a jury trial.

D. Municipalities having both municipal criminal courts of record and municipal courts not of record may enact ordinances, within the authority of this section, for each court.

E. No municipality may levy a fine or deferral fee in lieu of a fine of over Fifty Dollars (\$50.00) until it has compiled and published its penal ordinances as required in Sections 14-109 and 14-110 of this title.

F. No municipality may levy a fine of more than Ten Dollars (\$10.00) nor court costs of more than Fifteen Dollars (\$15.00) for

exceeding the posted speed limit by no more than ten (10) miles per hour upon any portion of the National System of Interstate and Defense Highways, federal-aid primary highways, ~~and~~ or the state highway system which ~~are~~ is located on the outskirts of any municipality as determined in Section 2-117 of Title 47 of the Oklahoma Statutes.

G. If any fine or deferral fee in lieu of a fine, as stated in a municipal ordinance, or any other fine or fee schedule adopted by a municipality, exceeds the maximum amount authorized by this section or other applicable statutes for the same offense, the amount is void and unenforceable to the extent of the excess amount and shall be deemed reformed and reduced by operation of law to the maximum lawful amount.

SECTION 2. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 26th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____